

24NNCV02314 24NNCV02314

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#12 - JEFFREY C. BELLANTONI, et al. vs WI ALBERTA, LLC

EX

PARTE APPLICATION / MOTION TO STRIKE

Defendants Austin Low and Metro Capital Group, LLC move to strike paragraphs 176 through 178 and paragraph 5 of the Prayer for Relief from Plaintiffs' Second Amended Complaint.

On July 6, 2026, the

Court granted Defendants' motion for judgment on the pleadings as to the four causes of action asserted against Low and Metro, with leave to amend "limited to the theories identified in Plaintiffs' opposition and supporting declaration, absent further order of the court." (7/6/26 Minute Order.) Those theories included Low's individual liability and personal participation in the disclosures, pest treatment, renovation, and alleged concealment; alter ego theories; Metro's role in the transaction; and Low's alleged performance or direction of contracting work without a license.

Plaintiffs' Second

Amended Complaint added allegations and a prayer seeking exemplary damages against Low and Metro under Civil Code section 3294. Defendants contend those allegations exceed the limited leave to amend, while Plaintiffs contend punitive damages are a remedy incident to the fraud theory the Court expressly permitted them to amend. The parties' July 21, 2026 stipulation preserved that dispute and authorized Defendants to move to strike the challenged allegations.

Tentative Ruling

The motion is

DENIED. Defendants are to answer within 10 days.

Legal Authority and

Analysis

Any party, within

the time allowed to respond to a pleading may serve and file a notice of motion

to strike a pleading or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1).) The court may, upon a motion, or at any time

in its discretion, and upon terms it deems proper, strike any irrelevant,

false, or improper matter inserted in any pleading. (Id., at § 436, subd. (a).) The court may also strike all or any part of

any pleading not drawn or filed in conformity with California law, a court

rule, or an order of the court. (Id.,

at § 436, subd. (b).) An immaterial or

irrelevant allegation is one that is not essential to the statement of a claim

or defense; is neither pertinent to nor supported by an otherwise sufficient

claim or defense; or a demand for judgment requesting relief not supported by

the allegations of the complaint. (Id.,

at § 431.10, subd. (b).) The grounds for

moving to strike must appear on the face of the pleading or by way of judicial

notice. (Id., at § 437.)

The question

presented is whether the challenged punitive-damages allegations exceed the

July 6 order. This order limited

amendment to specified “theories.” It

expressly permitted Plaintiffs to amend their fraud claim to allege Low’s

personal participation in disclosures and alleged concealment. Punitive damages are a potential remedy for

that authorized tort theory, not a separate cause of action or an alternative

basis for establishing underlying liability.

Defendants correctly

observe that a pleading may be stricken when it exceeds limited leave to amend.

In *Harris v. Wachovia Mortg., FSB*

(2010) 185 Cal.App.4th 1018, 1023, the court noted a plaintiff may only amend a

complaint within the scope allowed by the court and cannot add new causes of

action without obtaining permission. But

Harris concerned the addition of an unauthorized cause of action. Here, the challenged allegations seek an

additional remedy arising from an expressly authorized fraud and concealment

theory. Treating that remedy as a new “theory” would conflate the basis for liability with the relief potentially available if liability and the statutory predicates are proven.

The Court’s use of the word “theories” did not expressly restrict Plaintiffs to the remedies requested in an earlier pleading. Nor did the order prohibit Plaintiffs from pleading relief ordinarily incident to the authorized tort claims. The Court, therefore, does not interpret the July 6 order as barring a request for exemplary damages based upon the fraud and concealment allegations the order permitted Plaintiffs to plead.

The result is the same for Defendant Metro. Section 3294 imposes distinct requirements for recovering punitive damages from a corporate employer, including conduct, authorization, or ratification attributable to an officer, director, or managing agent. Pleading those statutory predicates does not create a separate underlying cause of action against Metro; it identifies the conditions necessary to obtain the requested remedy.

This ruling does not determine whether paragraphs 176 through 178 plead sufficient facts to establish malice, oppression, fraud, authorization, ratification, or managing-agent status under section 3294. Defendants’ motion rests on the narrower contention that the allegations were filed contrary to the July 6 order. On that ground, the challenged allegations are not subject to strike.

Moving Party is to give notice.